

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHASEN PAUL DAVID GONZALES,

Petitioner

VS.

CHIPONGOLO MULENGA,

Respondent

) Case Number: FPT-24-378337

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHANGES TO PARENTING PLAN

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Chasen Paul David Gonzales (Father) and Chipongolo Mulenga (Mother) have one
minor child together, Ethan (DOB 7/22/2023, age 2). Father lives in San Francisco; Mother lives
in Walnut Creek. On 12/4/2024, a 4-year Domestic Violence Restraining Order (DVRO) was
issued against Father, protecting Mother, and the parties agreed this triggered the presumption
against custody for Father under Family Code section 3044 (the 3044 presumption).
- 2) In a Findings and Order After Hearing filed 10/10/2025, the Court found Father had met his
burden of overcoming the 3044 presumption but found it was in Ethan's best interest for Mother
to retain sole legal and sole physical custody of Ethan. The Court expressed concern about the
parties' troubled relationship and poor communication and stated that "if in the future if Father is
able to show the Court that his focus remains on building a positive co-parenting relationship, the
Court will consider a renewed motion for joint custody." The Court stated that it would like "the
parties to focus on ensuring their respective time with Ethan is quality time as opposed to

1 returning to litigation." The Court ordered the parties to continue working with a coparent
2 counselor to improve their communications. The Court ordered a parenting time schedule for
3 Father from Thursday to Friday during Week A and Thursday to Sunday during Week B, which
4 equates to a 29% timeshare for Father.

5 3) On 1/16/2026, Father filed a request for joint legal custody and a structured, two-phase transition
6 into a 2-2-5-5 parenting time schedule, as well as a comprehensive a holiday schedule, with a
7 review hearing to take place in 6 months. He describes ongoing coparenting challenges; for
8 example, he states that Mother has not kept him apprised of Ethan's health and welfare and has
9 failed to follow the order requiring her to provide him with information of individuals conducting
10 custody exchanges. He states he wishes to enroll Ethan in a preschool in San Francisco during his
11 custodial days.

12 4) On 4/8/2026, Mother filed a response. She notes that Father requested an additional custodial day
13 and began discussing his goal of 50/50 custody just 13 days after the last hearing; she states it
14 appears 50/50 custody is Father's focus, rather than communicating to her about how Ethan is
15 doing with the new schedule or while in his care. Mother notes that Ethan resists going to Father
16 during exchanges while he readily comes to her care and that issues with Ethan's behavior
17 increased when Father's parenting time increased. (She attaches to her declaration notes from the
18 daycare expressing concern about Ethan's behavior.) She states that Ethan is thriving in her care
19 and has a regular routine and schedule that includes daycare, speech therapy, and time with
20 Mother that he has become accustomed to since the last hearing. Mother states she has been
21 present at all custody exchanges but has another individual do the exchange because of the
22 DVRO. She asks that she not be required to provide information for every individual who may be
23 there to assist her on any given day, so long as she is also personally present at the exchange. She
24 sets forth a proposed holiday schedule and asks for a Right of First Refusal because she has
25 reason to believe Father is not spending his parenting time with Ethan. She also asks for a change
26 in the custody exchange location due to parking and other issues.

27 5) On 4/14/2026, Father filed a reply in which he disputes some of Mother's statements and states
28 that a Right of First Refusal is unnecessary and not workable. He states he would like to maintain
29 the current custody exchange location, Wow Kids, which he believes is a positive place for Ethan

1 and allows him to play at Wow Kids before exchanges. Father agrees with some parts of Mother's
2 proposed holiday schedule and also asks for a summer schedule, including an order permitting
3 him to take Ethan to Maryland in July.

4 **B. Findings and Orders**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child is the United States.
- 9 2) The Court finds it is in Ethan's best interest to maintain the current custody and parenting time
10 schedule to which he is in the process of adjusting. The Court notes that Father filed his request
11 just three months after the prior order in which the Court increased his parenting time and
12 instructed the parties to focus on their time with Ethan and improving their coparenting skills
13 instead of returning to litigation. The parties' declarations do not reflect sufficient improvement in
14 the parties' communication or ability to coparent or make joint decisions to justify a modification
15 at this time.
- 16 3) The parties shall keep each other informed of any significant developments relating to Ethan's
17 health, education, and welfare.
- 18 4) The Court orders the following holiday schedule: Mother's Day and Father's Day - each parent
19 will have their respective day; Thanksgiving, defined as Thanksgiving Thursday at 9am to the
20 next day, Friday, at 9am - Mother in even-numbered years and Father in odd-numbered years;
21 Christmas, defined as 9am on December 24 to 9am on December 26 - Father in even-numbered
22 years and Mother in odd-numbered years. The parties shall meet and confer regarding all other
23 holidays, including a summer schedule and Father's request to travel out of state with Ethan.
- 24 5) The Court denies Mother's request for a Right of First Refusal and change in exchange location.
- 25 6) If Mother is present at the custody exchange, she is not required to provide Father with
26 information regarding the individual(s) who will assist her with the exchange.
- 27 7) All orders not in conflict with these orders shall remain in full force and effect.
- 28 8) Mother's attorney shall prepare the Findings and Order After Hearing.
- 29

1 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).